

"Chiefest and discreetest." — In a case, where the election was given to "the inhabitants and parishioners, or the major part of the *chiefest and discreetest* of them," it was held that by *chiefest*, was to be understood those who paid the church and poor rates, and by *discreetest*, those who had attained the age of twenty-one (*d*); but Lord Hardwicke said, that, even where "parishioners and inhabitants" stood *without any restriction at all*, it was a reasonable limitation to confine the meaning to those who paid scot and lot, that is, who paid to church and poor (*e*); and so, in a previous case, it seems his Lordship had actually determined (*f*). The Court of Exchequer adopted a similar construction in the *Clerkenwell Case* (*g*), though it does not appear how far the Court was guided in its judgment by the evidence of the common usage (*h*); and Lord Eldon, in a subsequent case, restricted the election to the same class (*i*), but his Lordship's decree was possibly founded on the circumstance, that those only who paid scot and lot were admitted to the *vestry* (*k*); not that, for the purposes of election, the vestry is the representative of the parish (*l*), but in one of the oldest documents the trust was said to be for "the parishioners of the said parish at a *vestry or vestries to be from time to time holden for the said parish*" (*m*). But where the instrument creating the trust contains merely the words "parishioners and *inhabitants," the Court will not [*88] confine the privilege of voting to those paying scot and lot, if it appears from constant usage that the terms are to be taken in a wider and more extensive signification, to include, for instance, all *housekeepers*, whether paying to the church and poor or not (*a*).

(*d*) *Fearon v. Webb*, 14 Ves. 13.

(*e*) *Attorney-General v. Parker*, 3 Atk. 557; S. C. 1 Ves. 43.

(*f*) *Attorney-General v. Davy*, cited *ib.*; S. C. 2 Atk. 213.

(*g*) *Attorney-General v. Rutter*, stated 2 Russ. 101, note.

(*h*) See *Attorney-General v. Forster*, 10 Ves. 345.

(*i*) *Edenborough v. Archbishop of Canterbury*, 2 Russ. 93.

(*k*) See *ib.* 110.

(*l*) *Attorney-General v. Parker*, 3 Atk. 578, *per* Lord Hardwicke; *Attorney-General v. Forster*, 10 Ves. 340, 344, *per* Lord Eldon.

(*m*) See *Edenborough v. Archbishop of Canterbury*, 2 Russ. 94.

(*a*) *Attorney-General v. Parker*, 3 Atk. 578; S. C. 1 Ves. 43. [Now that the compulsory payment of church rates has been abolished by